

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jaimie Vernon	Team: Squad #4	CCRB Case #: 201600652	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 01/05/2016 2:30 PM, Tuesday, 01/12/2016	Location of Incident: § 87(2)(b)	Precinct: 10	18 Mo. SOL 7/5/2017	EO SOL 7/5/2017	
Date/Time CV Reported Tue, 01/19/2016 4:01 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Tue, 01/19/2016 7:59 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Jason Spitzbarth	03760	933731	010 PCT
2. POM Michael Furrs	24036	943260	010 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Timothy White	13582	943949	010 PCT
2. POM Robert Karl	27557	922575	010 PCT

Officer(s)	Allegation	Investigator Recommendation
A.SGT Jason Spitzbarth	Abuse: On January 5, 2016, at § 87(2)(b) in Manhattan, Sgt. Jason Spitzbarth stopped § 87(2)(b)	§ 87(2)(b)
B.SGT Jason Spitzbarth	Abuse: On January 5, 2016, at § 87(2)(b) in Manhattan, Sgt. Jason Spitzbarth searched § 87(2)(b)	§ 87(2)(b)
C.SGT Jason Spitzbarth	Abuse: On January 5, 2016, at § 87(2)(b) in Manhattan, Sgt. Jason Spitzbarth frisked § 87(2)(b)	§ 87(2)(b)
D.POM Michael Furrs	Abuse: On January 5, 2016, at § 87(2)(b) in Manhattan, PO Michael Furrs searched § 87(2)(b)	§ 87(2)(b)
E.POM Michael Furrs	Abuse: On January 5, 2016, at § 87(2)(b) in Manhattan, PO Michael Furrs frisked § 87(2)(b)	§ 87(2)(b)
F.SGT Jason Spitzbarth	Abuse: On January 19, 2016, outside § 87(2)(b), Sgt. Jason Spitzbarth stopped § 87(2)(b)	§ 87(2)(b)
G.SGT Jason Spitzbarth	Abuse: On January 19, 2016, outside § 87(2)(b), Sgt. Jason Spitzbarth searched § 87(2)(b)	§ 87(2)(b)
H.SGT Jason Spitzbarth	Abuse: On January 19, 2016, outside § 87(2)(b) in Manhattan, Sgt. Jason Spitzbarth frisked § 87(2)(b)	§ 87(2)(b)
I.POM Michael Furrs	Abuse: On January 19, 2016, outside § 87(2)(b) in Manhattan, PO Michael Furrs frisked § 87(2)(b)	§ 87(2)(b)

Officer(s)	Allegation	Investigator Recommendation
§ 87(2)(g), § 87(4-b)		

Case Summary

On January 19, 2016, the CCRB received the complaint of § 87(2)(b) via the CCRB's website. On February 10, 2016, § 87(2)(b) provided a statement in which he alleged the following (Board Review 01):

On January 5, 2016, around 2:30PM, § 87(2)(b) had just picked up his § 87(2)(b) son from school when he was approached by Sgt. Jason Spitzbarth and PO Michael Furrs of the 10th Precinct Conditions unit near the intersection of § 87(2)(b) in Manhattan (**Allegation A**). After asking § 87(2)(b) where he was coming from, Sgt. Spitzbarth entered § 87(2)(b)'s right jeans pocket and retrieved his wallet and some stray bills and change (**Allegation B**). Sgt. Spitzbarth then frisked § 87(2)(b)'s right side, patting down his chest, abdomen, and upper legs (**Allegation C**).

PO Furrs then entered § 87(2)(b)'s left jeans pocket and retrieved his keys. He then entered § 87(2)(b)'s top right jacket pocket and took out § 87(2)(b)'s cell phone (**Allegation D**). He also frisked § 87(2)(b)'s left side (**Allegation E**). After Sgt. Spitzbarth conducted a warrant check, § 87(2)(b) asked the officers why they stopped him. Sgt. Spitzbarth told § 87(2)(b) that they suspected him of selling drugs. § 87(2)(b) denied selling drugs to anyone. Sgt. Spitzbarth and PO Furrs released § 87(2)(b) without an arrest or summons.

On January 19, 2016, around 4:30PM, § 87(2)(b) who was alone, had just gone to visit his daughter at § 87(2)(b), a NYCHA building in the Chelsea residences. However, he found that his daughter was not home. As he exited the building, a sky-blue Ford Fusion rolled up to him. § 87(2)(b) peeked in the car and saw Sgt. Spitzbarth, PO Furrs, and PO Timothy White sitting inside.

Sgt. Spitzbarth asked § 87(2)(b) how he had gone into the building, as he saw that he entered without a key. § 87(2)(b) replied that he just followed someone inside, who held the door open for him. Sgt. Spitzbarth then said, "Okay. Get up against the fence" (**Allegation F**). Sgt. Spitzbarth then exited the car, approached § 87(2)(b) and entered his right jeans pocket again, taking out his wallet. He entered § 87(2)(b)'s top right jacket pocket and retrieved his phone (**Allegation G**). Sgt. Spitzbarth and PO Furrs then frisked § 87(2)(b)'s chest, sides, and upper legs on either side (**Allegation H and I**).

§ 87(2)(b) explained that he used to live at § 87(2)(b), and showed the officers an expired driver's license bearing that address. Sgt. Spitzbarth took that ID and went into the building to verify § 87(2)(b)'s story of having gone to see his daughter. He returned about five minutes later. § 87(2)(b) was again released without an arrest or summons.

§ 87(2)(g)
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Video Footage

Video footage from § 87(2)(b) for January 19, 2016 was obtained by the investigation. However, it does not show § 87(2)(b) Sgt. Spitzbarth, or PO Furs. As the investigation discovered at a late date the correct date and location of the first incident, video footage from the NYCHA building at § 87(2)(b) could not be obtained.

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation.

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first and only CCRB complaint.
- This is Sgt. Spitzbarth's first and only CCRB complaint.
- PO Furs has been a member of the service for nine years. He has three prior CCRB cases with a total of eight allegations. In case 201310993, frisk and search of person allegations against him were substantiated § 87(2)(g), § 87(4-b)

- § 87(2)(g)

Potential Issues

The investigation made several attempts to contact § 87(2)(b) after finding that he was a witness to the stop of § 87(2)(b) on January 5, 2016. LexisNexis and CLEAR searches were conducted, yielding two addresses and three phone numbers. Letters that were sent to either address were returned, and the phone numbers were found to belong to different people.

Findings and Recommendations

Allegation A – Abuse of Authority: On January 5, 2016, at § 87(2)(b)

in Manhattan, Sgt. Jason Spitzbarth stopped § 87(2)(b) (b)

§ 87(2)(b) alleged that, as he was walking his son from school, Sgt. Spitzbarth and PO Furs approached him in front of § 87(2)(b). Sgt. Spitzbarth asked § 87(2)(b) where he was coming from, and § 87(2)(b) explained that he had just picked his son up from the elementary school at § 87(2)(b). Sgt. Spitzbarth then requested his ID. § 87(2)(b) explained that he had come from his home at § 87(2)(b) to pick up his son. When Sgt. Spitzbarth later explained that someone told him that § 87(2)(b)

§ 87(2)(b) sold drugs to someone, § 87(2)(b) adamantly denied selling drugs to anyone prior to the incident (Board Review 01).

Sgt. Spitzbarth explained that he had first seen § 87(2)(b) at § 87(2)(b), a NYCHA building in the Chelsea development, less than a block from where he would stop § 87(2)(b). Sgt. Spitzbarth described seeing a black male enter the building through the side entrance, which is normally restricted only to authorized persons. One to two minutes later, he saw the same male exit the building from the side entrance and hold the door open for someone else to exit. § 87(2)(b) then exited the building, and the two males walked together until they reached § 87(2)(b), after which they split up.

PO Karl decided to follow the first male, while Sgt. Spitzbarth and PO Furrs stayed where they were to observe § 87(2)(b). At this point, the officers suspected both males of trespassing at the building, and also suspected that, based on their loitering in an unauthorized part of the building for a short time, the males could have been engaging in a drug transaction.

A few minutes later, Sgt. Spitzbarth received a call from PO Karl informing him that he stopped the first male they saw, later identified to be § 87(2)(b) and discovered that he was in possession of a quantity of crack cocaine. When PO Karl asked § 87(2)(b) who sold him the drug, § 87(2)(b) identified § 87(2)(b) the male who had exited the building with him, as the person who sold him the crack cocaine. It was on the basis of this information that Sgt. Spitzbarth stopped § 87(2)(b) (Board Review 03).

PO Furrs largely corroborated Sgt. Spitzbarth, but stated that he had seen § 87(2)(b) and § 87(2)(b) standing in the side stairwell of § 87(2)(b) for about thirty seconds before the two men exited the stairwell together. He was not with Sgt. Spitzbarth when he received the call from PO Karl, but was told about PO Karl's observation before the stop of § 87(2)(b) (Board Review 04).

PO Karl stated that he observed § 87(2)(b) approaching the side emergency exit of the building, a few feet from the main entrance. When he approached the door, the door opened, and an unseen individual let § 87(2)(b) inside. Only five to ten seconds later, however, PO Karl saw § 87(2)(b) exit the building with § 87(2)(b). He decided to follow § 87(2)(b) as he had enough reason to suspect § 87(2)(b) of Criminal Trespassing.

When PO Karl caught up to § 87(2)(b) he asked him for his ID. As § 87(2)(b) reached into his coat for his ID, two clear zip-lock bags of crack cocaine dropped out of § 87(2)(b) coat. PO Karl picked up the bags, visually confirmed it was crack cocaine, and placed § 87(2)(b) under arrest. § 87(2)(f)

§ 87(2)(f) PO Karl then called Sgt. Spitzbarth by cell phone to inform him of what § 87(2)(b) said. PO Karl proceeded to escort § 87(2)(b) to the 10th Precinct stationhouse. On the way there, they spotted Sgt. Spitzbarth and PO Furrs stopping § 87(2)(b) § 87(2)(f)

The arrest report for § 87(2)(b) dated January 5, 2016, confirms that § 87(2)(b) was arrested at 2:40PM opposite § 87(2)(b), about a block from § 87(2)(b) (Board Review 06).

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Allegation B – Abuse of Authority: On January 5, 2016, at § 87(2)(b), Sgt. Jason Spitzbarth searched § 87(2)(b)
Allegation C – Abuse of Authority: On January 5, 2016, at § 87(2)(b), Sgt. Jason Spitzbarth frisked § 87(2)(b)
Allegation D – Abuse of Authority: On January 5, 2016, at § 87(2)(b), PO Michael Furrs searched § 87(2)(b)
Allegation E – Abuse of Authority: On January 5, 2016, at § 87(2)(b), PO Michael Furrs frisked § 87(2)(b)

§ 87(2)(b) alleged that after he told Spitzbarth that he was picking up his son from school, Sgt. Spitzbarth entered § 87(2)(b)'s right jeans pocket, retrieving his wallet and some stray bills and change. Sgt. Spitzbarth then frisked § 87(2)(b)'s chest, abdomen, and upper legs along the right side. PO Furrs entered § 87(2)(b)'s left jeans pocket and retrieved his keys. He then entered § 87(2)(b)'s top right jacket pocket and took out his cell phone. After that, he frisked § 87(2)(b) on the same areas along the left side. § 87(2)(b) was wearing a black ski jacket with no hood attached. He also wore jeans, sneakers, and a black ski cap. He had no other items on him other than what the officers took out (Board Review 01).

Both Sgt. Spitzbarth and PO Furrs acknowledged that § 87(2)(b) was frisked in this incident, but both denied that either entered any of § 87(2)(b)'s pockets. Sgt. Spitzbarth stated that he did not recall whether he or PO Furrs frisked § 87(2)(b) (Board Review 03). PO Furrs stated that he and Sgt. Spitzbarth frisked § 87(2)(b) along either side, concentrating on the chest sides, and waistband (Board Review 04).

When asked why § 87(2)(b) was frisked, both officers explained that it was for officer safety. They both stated that, as PO Karl informed them that § 87(2)(b) identified § 87(2)(b) as the person who sold him drugs, they had reason to believe § 87(2)(b) was armed based on their observation that drug transactions often involve weapons in one way or another. Despite this, neither officer made any specific observations that § 87(2)(b) might be armed, including furtive movements or bulges. Furthermore, neither officer expressed an intent to arrest § 87(2)(b) on the basis of the information PO Karl provided them.

In *People v. Debour*, the New York State Court of Appeals ruled that an officer can frisk a person if the officer has a reasonable suspicion that the person is armed. In general, a reasonable

suspicion must be based on specific localized observations, such as a waistband bulge or a furtive movement with one's hands (40 N.Y. 2d 210, 1976; Board Review 07).

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§ 87(2)(g)

Allegation F – Abuse of Authority: On January 19, 2016, outside § 87(2)(b) in Manhattan, Sgt. Jason Spitzbarth stopped § 87(2)(b)

§ 87(2)(b) alleged that after leaving § 87(2)(b) from the front entrance when he attempted to visit his daughter, Sgt. Spitzbarth, accompanied by PO Furrs and PO White, drove up to § 87(2)(b) and asked him to stop. Sgt. Spitzbarth asked him how he entered the building from the rear entrance. § 87(2)(b) said that he followed someone in, who held the door for him. § 87(2)(b) had been in the building for less than five minutes, for when he went up to his daughter's apartment on the § 87(2)(b) floor, he saw that she was not home. Sgt. Spitzbarth then said, "Get over to the fence" (Board Review 01).

Sgt. Spitzbarth, PO Furrs, and PO White all explained that § 87(2)(b) was stopped this time on the basis of his entering the building through the rear entrance without a key. Sgt. Spitzbarth and PO Furrs maintained that they did not know it was § 87(2)(b) until they had already approached him.

All the officers explained that, as the building is a NYCHA building, all visitors must be buzzed in through the front entrance. If one does not have a key and enters the building through any entrance other than the one in the front, the person is trespassing. The officers also noted that, despite entering from the rear, § 87(2)(b) exited the building from the front entrance in the span of less than two minutes. The officers, all of whom claimed knowledge of the building, suspected that the only reason one would enter through the rear and exit immediately from the front would be to engage in some kind of criminal activity (Board Review 03, Board Review 04, and Board Review 08).

The officers also all confirmed that Sgt. Spitzbarth went inside the building and retraced § 87(2)(b)'s steps. Sgt. Spitzbarth entered the building through the rear, took the elevator to the § 87(2)(b) floor, went to the daughter's apartment, knocked and found no one there, took the elevator back down, and exited the building from the front entrance. Sgt. Spitzbarth stated that this took at least five minutes (Board Review 03).

In the Stop, Question, and Frisk report he prepared in regard to this incident, in the section regarding the circumstances that led to the stop, PO Furrs checked off the boxes labeled "Actions Indicative of Casing", "Actions Indicative of Engaging in Drug Transaction", "Furtive

Movements”, and “Wearing of Clothes/Disguises Commonly Used in Commission of Crime” (Board Review 09).

In his statement, PO Furrs explained that § 87(2)(b) s entering the building from the back entrance and exiting so quickly through the front entrance was indicative of possible casing. He described § 87(2)(b) as talking on his cell phone at the time with one hand in his pocket, which appeared to PO Furrs to be a “furtive movement”. He also described § 87(2)(b) as having worn a dark hoodie, which could possibly conceal a weapon. And while PO Furrs admitted to making no specific observations that § 87(2)(b) was possibly engaging in a drug transaction, he explained that the box was checked because the building is a drug-prone location (Board Review 04).

The New York State Penal Law regarding Criminal Trespassing in the third degree, section 140.10, states that a person is guilty of Criminal Trespassing in part if they knowingly enter or remain unlawfully in a public housing project in violation of its conspicuously posted rules or regulations governing its entry (Board Review 10).

In *People v. Martinez*, the New York County Criminal Court ruled that seeing a person entering a NYCHA building without a key or the use of a buzzer provides an officer with an objective, credible reason with which to approach that person and inquire if they live in the building (Board Review 11).

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Allegation G – Abuse of Authority: On January 19, 2016, outside § 87(2)(b), Sgt. Jason Spitzbarth searched § 87(2)(b)

Allegation H – Abuse of Authority: On January 19, 2016, outside § 87(2)(b), Sgt. Jason Spitzbarth frisked § 87(2)(b)

Allegation I – Abuse of Authority: On January 19, 2016, outside § 87(2)(b), PO Michael Furrs frisked § 87(2)(b)

§ 87(2)(b) alleged that after he explained to Sgt. Spitzbarth that he was able to enter the building through the rear entrance by following after someone who had a key, Sgt. Spitzbarth approached him and entered his right jeans pocket, taking out his wallet. Sgt. Spitzbarth then entered § 87(2)(b) s top right jacket pocket and took out his phone. Sgt. Spitzbarth and PO Furrs then frisked § 87(2)(b) along either side as they did in the previous incident, focusing on his chest, sides, and upper legs. § 87(2)(b) explained that he was wearing the same general outfit that he wore in the previous incident – a dark ski jacket, a dark cap, and jeans (Board Review 01).

Sgt. Spitzbarth again stated that he did not recall who frisked § 87(2)(b) in this incident, but explained that § 87(2)(b) would have been frisked again for general officer safety

reasons. He denied entering any of § 87(2)(b)'s pockets, saying that § 87(2)(b) took out his own wallet to provide his ID. He added that, once the officers found that once the officers recognized § 87(2)(b) from the previous incident, they also suspected that he was in the building possibly to engage in a drug transaction, despite not making observations to that effect in this incident (Board Review 03).

PO Furs admitted that both he and Sgt. Spitzbarth frisked § 87(2)(b) along either side in a manner similar to how they frisked him in the previous incident. He also explained that it was for officer safety, while making no specific observations that § 87(2)(b) was armed. He also denied that Sgt. Spitzbarth entered his pockets (Board Review 04).

In his Stop, Question, and Frisk Report, in the section regarding the reason for the frisk, PO Furs only checked the box labeled “Inappropriate Attire – Possibly Concealing Weapon” (Board Review 09).

As cited above, *People v. Debour* ruled that officers may only frisk a person if they have a reasonable suspicion that the person is armed (Board Review 07).

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§ 87(2)(g)
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§ 87(2)(g), § 87(4-b)
[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

§ 87(2)(g), § 87(4-b)

Squad: 4

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date